

MAKING OF THE CONSTITUTION

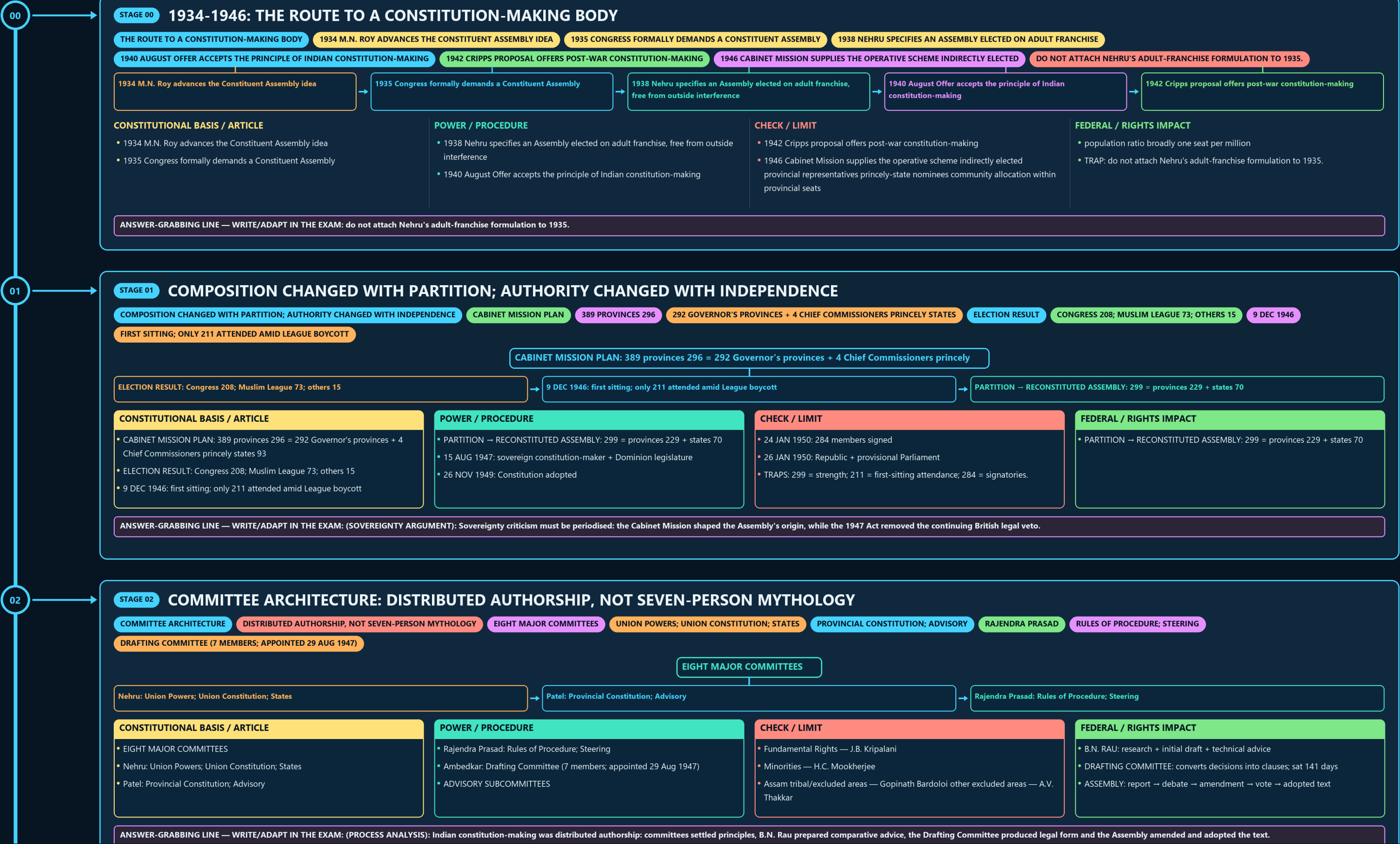
1934-1946: THE ROUTE TO → COMPOSITION CHANGED WITH PARTITION → COMMITTEE ARCHITECTURE: DISTRIBUTED AUTHORSHIP → DRAFTING PIPELINE, DEBATE METRICS → PEOPLE, OFFICES AND CONSTITUTIONAL → DEBATE MAP: RIGHTS, FEDERALISM

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g16 • explicit approval of this exact generation is required • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles



02

STAGE 02

COMMITTEE ARCHITECTURE: DISTRIBUTED AUTHORSHIP, NOT SEVEN-PERSON MYTHOLOGY

COMMITTEE ARCHITECTURE

DISTRIBUTED AUTHORSHIP, NOT SEVEN-PERSON MYTHOLOGY

EIGHT MAJOR COMMITTEES

UNION POWERS; UNION CONSTITUTION; STATES

PROVINCIAL CONSTITUTION; ADVISORY

RAJENDRA PRASAD

RULES OF PROCEDURE; STEERING

DRAFTING COMMITTEE (7 MEMBERS; APPOINTED 29 AUG 1947)

EIGHT MAJOR COMMITTEES

Nehru: Union Powers; Union Constitution; States

Patel: Provincial Constitution; Advisory

Rajendra Prasad: Rules of Procedure; Steering

CONSTITUTIONAL BASIS / ARTICLE

EIGHT MAJOR COMMITTEES

Nehru: Union Powers; Union Constitution; States

Patel: Provincial Constitution; Advisory

POWER / PROCEDURE

Rajendra Prasad: Rules of Procedure; Steering

Ambedkar: Drafting Committee (7 members; appointed 29 Aug 1947)

ADVISORY SUBCOMMITTEES

CHECK / LIMIT

Fundamental Rights — J.B. Kripalani

Minorities — H.C. Mookherjee

Assam tribal/excluded areas — Gopinath Bardoloi other excluded areas — A.V. Thakkar

FEDERAL / RIGHTS IMPACT

B.N. RAU: research + initial draft + technical advice

DRAFTING COMMITTEE: converts decisions into clauses; sat 141 days

ASSEMBLY: report → debate → amendment → vote → adopted text

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (PROCESS ANALYSIS): Indian constitution-making was distributed authorship: committees settled principles, B.N. Rau prepared comparative advice, the Drafting Committee produced legal form and the Assembly amended and adopted the text.

03

STAGE 03

DRAFTING PIPELINE, DEBATE METRICS AND COMMENCEMENT ARTICLES

DRAFTING PIPELINE, DEBATE METRICS AND COMMENCEMENT ARTICLES

13 DEC 1946 OBJECTIVES RESOLUTION MOVED

22 JAN 1947 ADOPTED COMMITTEE REPORTS + B.N. RAU

29 AUG 1947 DRAFTING COMMITTEE

FEB 1948 PUBLIC DRAFT

OCT 1948 REVISED DRAFT

READING 1 GENERAL

READING 2 CLAUSE/AMENDMENT

CONSTITUTIONAL BASIS / ARTICLE

13 DEC 1946 Objectives Resolution moved → 22 JAN 1947 adopted committee reports + B.N. Rau draft → 29 AUG 1947 Drafting Committee

FEB 1948 public Draft → comments → OCT 1948 revised Draft

READING 1 general → READING 2 clause/amendment → READING 3 passage

ASSEMBLY WORK: 11 sessions; 165 sitting days; Draft debated 114 days

POWER / PROCEDURE

AMENDMENTS: 7,635 tabled; 2,473 moved/disposed

26 NOV 1949: adopted; 16 provisions commenced immediately

24 JAN 1950: 284 signatures

26 JAN 1950: remaining provisions commence

CHECK / LIMIT

ARTICLES 393-395 CONTROL

393 short title

394 commencement split

394A authoritative Hindi text

FEDERAL / RIGHTS IMPACT

395 repeals the 1935 Act and Indian Independence Act 1947

TRAP: Article 394, not 393, controls commencement.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (ADOPTION / COMMENCEMENT): Adoption, signing and commencement were distinct constitutional stages, allowing selected transitional provisions to operate before the Constitution generally commenced on 26 January 1950.

04

STAGE 04

PEOPLE, OFFICES AND CONSTITUTIONAL SYMBOLS

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TEMPORARY PRESIDENT

SACHCHIDANANDA SINHA

PERMANENT PRESIDENT

RAJENDRA PRASAD

H.C. MOOKHERJEE; V.T. KRISHNAMACHARI

CONSTITUTIONAL ADVISER

B.N. RAU

TEMPORARY PRESIDENT: Sachchidananda Sinha

PERMANENT PRESIDENT: Rajendra Prasad

VICE-PRESIDENTS: H.C. Mookherjee; V.T. Krishnamachari

CONSTITUTIONAL ADVISER: B.N. Rau

CONSTITUTIONAL BASIS / ARTICLE

TEMPORARY PRESIDENT: Sachchidananda Sinha

PERMANENT PRESIDENT: Rajendra Prasad

VICE-PRESIDENTS: H.C. Mookherjee; V.T. Krishnamachari

CONSTITUTIONAL ADVISER: B.N. Rau

POWER / PROCEDURE

DRAFTING CHAIR / DRAFT PILOT: B.R. Ambedkar

CONSTITUENT BUSINESS: Rajendra Prasad

DOMINION-LEGISLATIVE BUSINESS: G.V. Mavlankar

24 JAN 1950

CHECK / LIMIT

284 members sign English and Hindi calligraphed copies

Jana Gana Mana adopted as National Anthem

Vande Mataram accorded equal honour as National Song

Rajendra Prasad elected first President of India

FEDERAL / RIGHTS IMPACT

TRAP: adoption 26 Nov 1949 != signing 24 Jan 1950 != commencement 26 Jan 1950.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: adoption 26 Nov 1949 != signing 24 Jan 1950 != commencement 26 Jan 1950.

05

STAGE 05

DEBATE MAP: RIGHTS, FEDERALISM, EXECUTIVE AND SOCIAL REVOLUTION

DEBATE MAP

RIGHTS, FEDERALISM, EXECUTIVE AND SOCIAL REVOLUTION

CONSTITUTIONAL CHOICE

LIBERTY + EQUALITY + REMEDIES VERSUS PREVENTIVE POWERS, PUBLIC

PROVINCIAL AUTONOMY VERSUS PARTITION-ERA NEED FOR AN EFFECTIVE UNION

PARLIAMENTARY RESPONSIBILITY VERSUS INSTABILITY AND CONCENTRATED LEADERSHIP

CULTURAL/EDUCATIONAL PROTECTION VERSUS REJECTION OF SEPARATE POLITICAL ELECTORATES

SOCIAL REVOLUTION ENFORCEABLE RIGHTS + DIRECTIVE PRINCIPLES + AFFIRMATIVE

CONSTITUTIONAL CHOICE

RIGHTS: liberty + equality + remedies versus preventive powers, public order and social reform

FEDERALISM: provincial autonomy versus Partition-era need for an effective Union

EXECUTIVE: parliamentary responsibility versus instability and concentrated leadership

MINORITIES: cultural/educational protection versus rejection of separate political electorates

CONSTITUTIONAL BASIS / ARTICLE

CONSTITUTIONAL CHOICE

POWER / PROCEDURE

FEDERALISM: provincial autonomy versus Partition-era need for an effective Union

CHECK / LIMIT

MINORITIES: cultural/educational protection versus rejection of separate political electorates

FEDERAL / RIGHTS IMPACT

RESULT: political democracy joined an unfinished social transformation.

MAKING OF THE CONSTITUTION • TILE 2/4 • same master rows 2423-5657 of 10502 • continues below

• CONSTITUTIONAL ADVISER: B.N. Rau

• 24 JAN 1950

• Rajendra Prasad elected first President of India

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: adoption 26 Nov 1949 != signing 24 Jan 1950 != commencement 26 Jan 1950.

05

STAGE 05

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CONSTITUTIONAL BASIS / ARTICLE

• CONSTITUTIONAL CHOICE

• RIGHTS: liberty + equality + remedies versus preventive powers, public order and social reform

POWER / PROCEDURE

• FEDERALISM: provincial autonomy versus Partition-era need for an effective Union

• EXECUTIVE: parliamentary responsibility versus instability and concentrated leadership

CHECK / LIMIT

• MINORITIES: cultural/educational protection versus rejection of separate political electorates

• SOCIAL REVOLUTION enforceable rights + Directive Principles + affirmative action

FEDERAL / RIGHTS IMPACT

• RESULT: political democracy joined an unfinished social transformation.

• CONSTITUTIONAL CHOICE

MECHANISM / VERDICT — RESULT: political democracy joined an unfinished social transformation.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (LEGITIMACY COMPENSATION): The Constituent Assembly's representativeness depended on indirect selection, social range, political dominance, boycott and post-Partition change rather than any single numerical measure.

06

STAGE 06

BORROWED PROVISIONS BECAME INDIAN CONSTITUTIONAL ADAPTATIONS

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SOURCE INDIAN ADAPTATION

UK CABINET RESPONSIBILITY + PARLIAMENTARY GOVERNMENT

US FUNDAMENTAL RIGHTS + JUDICIAL REVIEW + IMPEACHMENT IDEAS

IRELAND DIRECTIVE PRINCIPLES + PRESIDENTIAL NOMINATION METHOD

CANADA FEDERATION WITH STRONG CENTRE + RESIDUARY UNION POWER

AUSTRALIA CONCURRENT LIST + TRADE PROVISIONS + JOINT SITTING

GERMANY EMERGENCY IDEAS, CONSTITUTIONALLY RECAST

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
SOURCE INDIAN ADAPTATION	Ireland Directive Principles + presidential nomination method	Germany emergency ideas, constitutionally recast	TEST: borrowed device + Indian problem + altered setting = Indian rule
UK cabinet responsibility + parliamentary government	Canada federation with strong Centre + residuary Union power	South Africa amendment elements + Rajya Sabha election method	VERDICT: sources supplied techniques; the Assembly supplied hierarchy and legitimacy.
US Fundamental Rights + judicial review + impeachment ideas	Australia Concurrent List + trade provisions + joint sitting	Gol Act 1935 machinery stripped of imperial sovereignty	

CONSTITUTIONAL BASIS / ARTICLE

• SOURCE INDIAN ADAPTATION

• UK cabinet responsibility + parliamentary government

• US Fundamental Rights + judicial review + impeachment ideas

POWER / PROCEDURE

• Ireland Directive Principles + presidential nomination method

• Canada federation with strong Centre + residuary Union power

• Australia Concurrent List + trade provisions + joint sitting

CHECK / LIMIT

• Germany emergency ideas, constitutionally recast

• South Africa amendment elements + Rajya Sabha election method

• Gol Act 1935 machinery stripped of imperial sovereignty

FEDERAL / RIGHTS IMPACT

• TEST: borrowed device + Indian problem + altered setting = Indian rule

• VERDICT: sources supplied techniques; the Assembly supplied hierarchy and legitimacy.

MECHANISM / VERDICT — VERDICT: sources supplied techniques; the Assembly supplied hierarchy and legitimacy.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: sources supplied techniques; the Assembly supplied hierarchy and legitimacy.

07

STAGE 07

CRITICISM AND EVIDENCE-LED REPLY

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NO ADULT-FRANCHISE ELECTION

REAL MANDATE DEFICIT; RESTRICTED FRANCHISE, PRINCELY NOMINATION, PARTITION AND

CONGRESS DOMINATION

208/296 CONFIRMS DOMINANCE; INTERNAL DIVERSITY, COMMITTEES, DISSENT AND PUBLIC

PRECISION MEDIATED FEDERAL, RIGHTS AND TRANSITION CONFLICT

SELECTIVE BORROWING WAS RECOMBINED AND INDIA-SPECIFIC

SOCIAL UNDER-REPRESENTATION

CONSTITUTIONAL BASIS / ARTICLE

• NO ADULT-FRANCHISE ELECTION → real mandate deficit

• restricted franchise, princely nomination, Partition and no universal rolls explain but do not erase it

POWER / PROCEDURE

• CONGRESS DOMINATION → 208/296 confirms dominance; internal diversity, committees, dissent and public comments complicate a one-party caricature

• LAWYER-MADE / OVER-LEGAL → precision mediated federal, rights and transition conflict

CHECK / LIMIT

• COPIED → selective borrowing was recombined and India-specific

• SOCIAL UNDER-REPRESENTATION → exclusions were real despite minority/women/Dalit voices

FEDERAL / RIGHTS IMPACT

• EXCESSIVE TIME → 2 years, 11 months, 18 days covered Partition and clause scrutiny

• VERDICT: imperfect electoral origin + substantial deliberative authorship.

MECHANISM / VERDICT — VERDICT: imperfect electoral origin + substantial deliberative authorship.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (CRITICISM / REPLY): The Assembly was weak on direct electoral mandate but stronger on social range, reason-giving and the universal franchise it created.

08

STAGE 08

FOUR PYQ CONTROLS AND RECURRING PRELIMS TRAPS

CRITICISM AND EVIDENCE-LED REPLY

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REAL MANDATE DEFICIT; RESTRICTED FRANCHISE, PRINCELY NOMINATION, PARTITION AND

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STAGE 08

FOUR PYQ CONTROLS AND RECURRING PRELIMS TRAPS

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2021 GS-I Q93

ON 26 JAN 1950 INDIA BECAME A SOVEREIGN DEMOCRATIC

2023 GS-I Q85

CONSTITUTION DAY AND DRAFTING COMMITTEE STATEMENTS

2024 GS-I Q61

SACHCHIDANANDA SINHA

PROVISIONAL PRESIDENT

389/299/211/284

Rau/Ambekar/Assembly

adoption/signing/commencement

Rajendra Prasad/Mavlankar

parent committee/subcommittee chair original 395 Articles + 8 Schedules versus today's totals

CONSTITUTIONAL BASIS / ARTICLE

• 2021 GS-I Q93: on 26 Jan 1950 India became a Sovereign Democratic Republic

• 2023 GS-I Q85: Constitution Day and Drafting Committee statements

POWER / PROCEDURE

• 2024 GS-I Q61: Sachchidananda Sinha = provisional President

• 2026 GS-I Q55: Articles 393-395 text supports statements 1 and 3 repository key is provisional/conflicting; preserve qualification

CHECK / LIMIT

• RECURRING TRAPS

• Rajendra Prasad/Mavlankar

FEDERAL / RIGHTS IMPACT

• parent committee/subcommittee chair original 395 Articles + 8 Schedules versus today's totals

• Debates are persuasive aids; enacted text remains supreme.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Articles 393-395 text supports statements 1 and 3 repository key is provisional/conflicting; preserve qualification.

09

STAGE 09

EXACT 10/15/20-MARK ANSWER ARCHITECTURE

EXACT 10/15/20-MARK ANSWER ARCHITECTURE

10 MARKS

150 WORDS

1. DEFINE THE ISSUE/DEMAND. 2. USE 389—299 PLUS ONE

3. ADD ONE COMMITTEE-ROLE DISTINCTION. 4. GIVE BALANCED VERDICT.

15 MARKS

250 WORDS

1. THESIS. 2. ORIGINS 1934-46. 3. COMPOSITION + SOVEREIGNTY

10 MARKS / 150 WORDS

→ 1. Define the issue/demand. 2. Use 389—299 plus one exact date. → 3. Add one committee-role distinction. 4. Give balanced verdict. → 15 MARKS / 250 WORDS → 1. Thesis. 2. Origins 1934-46. 3. Composition + sovereignty shift.

CONSTITUTIONAL BASIS / ARTICLE

• 10 MARKS / 150 WORDS

• 1. Define the issue/demand. 2. Use 389—299 plus one exact date.

• 3. Add one committee-role distinction. 4. Give balanced verdict.

• 15 MARKS / 250 WORDS

POWER / PROCEDURE

• 1. Thesis. 2. Origins 1934-46. 3. Composition + sovereignty shift.

• 4. Resolution—committees—draft—readings. 5. Two criticisms with evidence.

• 6. One adaptation/debate example. 7. Graded conclusion.

• 20 MARKS / 250 WORDS

CHECK / LIMIT

• 1. Decode directive and frame legitimacy/originality test.

• 2. Origin deficit: indirect election, nomination, boycott, exclusions.

• 3. Process defence: public draft, 7,635/2,473 amendments, 114 debate days.

• 4. Distributed authorship: Rau → committees → Drafting → Assembly.

FEDERAL / RIGHTS IMPACT

• 5. Substance: rights, federalism, social revolution, adapted borrowing.

• 6. Limits and counterweight in paired table. 7. Nuanced verdict.

• MARKS GRABBER: metric + named institution + mechanism + qualification.

MECHANISM / VERDICT — MARKS GRABBER: metric + named institution + mechanism + qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: metric + named institution + mechanism + qualification.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

01. CONGRESS EXPERTS COMMITTEE AND PRE-ASSEMBLY PREPARATION

02. DEEPER COMPOSITION AND REPRESENTATION CONTROLS

03. COMMITTEE CHAIR MEMORY MAP AND RELEVANT SUBCOMMITTEES

04. DRAFTING INTENSITY AND COMPARATIVE STUDY

05. CRITIC ATTRIBUTIONS AND EVIDENTIARY CAUTION

06. CONSTITUTIONAL CRAFT, AUTHORITATIVE TEXT AND LABELS

07. LIVING CONSTITUTION REFINEMENT

OPTIONAL DOCTRINE / CASE

• 01. Congress Experts Committee and pre-Assembly preparation

• 02. Deeper composition and representation controls

• 03. Committee chair memory map and relevant subcommittees

• 04. Drafting intensity and comparative study

ADVANCED LIMIT

• 05. Critic attributions and evidentiary caution

• 06. Constitutional craft, authoritative text and labels

• 07. Living Constitution refinement

• [FACT] Congress appointed an Experts Committee on 8 July 1946 under Jawaharlal Nehru to prepare constitutional material before the Assembly met.

COMPARATIVE NUANCE

• [FACT] Its membership included Asaf Ali, K.M.

• Munshi, N.

• Gopalaswami Ayyangar, K.T.

• Shah, D.R.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.